

Essential Goods Protection Act, 1955

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Essential Goods Protection Act, 2012

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Amending Acts

1. Essential Goods Protection (First Amendment) Act, 2018 2018.9.13
2. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16
3. Essential Goods Protection (Second Amendment) Act, 2024 2024.7.6
4. Justice Administration Reform (First Amendment) Act, 2033 2033.4.10
5. Essential Goods Protection (Third Amendment) Act, 2038 2038.6.14
6. Justice Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
7. Justice Administration Act, 2048 2048.2.16
8. Act to Amend Some Nepal Acts, 2048 2048.9.18
9. Republic Strengthening and Amendment of Some Nepal Laws Act, 2066 2066.1.07
10. Act to Amend Some Nepal Acts, 2072 2072.11.13

Act No. 13 of 2012

Essential Goods Protection Act, 2012

Amended by Some Nepal Laws (Amendment and Reorganization) Act, 2020.* Whereas it is deemed necessary to protect certain essential goods of public use to maintain the convenience of the general public, this Act is hereby enacted and promulgated by His Majesty King Mahendra. 1. Short Title and Extent: (a) This Act may be called the "Essential Goods Protection Act, 2012."

(b) This Act shall be applicable throughout the Kingdom of Nepal. Amended by the Third Amendment.2. Definition: Unless the subject or context otherwise requires, in this Act, "essential goods" shall be understood to mean the following goods, as well as other goods attached to or connected with them:

- (a) Telegraph, telephone,
- (b) Ropeway, railway,
- (c) Highway, main road, bridge,
- (d) Drain, drainage pipeline,
- (e) Sources of drinking water constructed by the Government of Nepal or any institution, or with permission from the Government of Nepal or any institution,
- (f) Electricity, electrical generation equipment,
- (g) Weather and water resource related stations,
- (h) Airport, communication cable lines, antennas, radio communication stations, pathfinders, safety signals and similar other equipment located inside or outside the airport area,

- (i) Petrol, petrol pump stations, fuel depots,
 - (j) Public rest houses, shelters, alms houses,
 - (k) Any goods specified by the Government of Nepal by publishing a notice in the Nepal Gazette.
3. Prohibition and Punishment for Unauthorized Persons: No person shall, by employing another or by themselves, tamper with, remove, dismantle, damage in any manner, steal, or cause to do so any essential goods. In addition to the punishment provided by the law for such act, there shall be amended by the Second Amendment. compensation and a fine equal to the amount of the compensation, or both. Provided that, If a person authorized by the owner, for the purpose of construction or repair, performs any of the acts mentioned above other than theft, such person shall not be liable.

If any essential goods are damaged due to an accident, and notice thereof is given to the nearest government office in the district headquarters, or to the amended by the Republic Strengthening and Amendment of Some Nepal Laws Act, 2066. District Administration Office in the district headquarters, such person shall not be deemed an offender under this section. However, the compensation for the damage caused must be paid.

4. Prohibition on Aiding or Suppressing Unauthorized Persons and Punishment Therefor: If the residents of any place are found to have colluded with, aided, harbored or sheltered, concealed to protect from offense, or failed to attempt to prevent, or knowingly failed to report such thieves or miscreants committing theft or mischief, such persons shall be punished in accordance with Section 3. Amended by the Second Amendment. Amended by the Act to Amend Some Nepal Acts, 2072.

5. Powers of Local Level or Administrative Officer: Every person shall take care of essential goods. If essential goods in any area are lost, stolen, or damaged in any other manner due to failure to do so, the nearest Amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality or Municipality or the Administrative Officer shall make arrangements for guarding by organizing patrol duty. Amended by the First Amendment.

6. Right to Use Appropriate Force Against Offender: When attempting to arrest an offender at the scene of the incident, if he/she offers violent resistance or tries to escape, such person shall not be allowed to escape. If, in doing so, it becomes necessary to use weapons, a Head Constable of the Police Force or any officer above that rank, or Amended by the Republic Strengthening and Amendment of Some Nepal Laws Act, 2066. any officer of the Nepali Army of the rank of Havildar or above, or any officer of equivalent rank in other forces, shall personally or by ordering subordinates, use weapons below the knee or fire bullets to arrest the offender. If a person dies while being arrested as stated above, the concerned government employee shall not be held liable.

Explanation: For the purpose of this section, "other forces" shall also include the Militia, Pioneer, Amended by the Republic Strengthening and Amendment of Some Nepal Laws Act, 2066. Reserve, and Garrison.

7. Punishment for Buyer or Seller: Whoever knowingly buys, sells, or possesses any property related to essential goods knowing it to be stolen shall be punished in accordance with Section 3.

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